**IN THE NATIONAL COMPANY LAW TRIBUNAL, NEW DELHI**
**COURT-III**

**Item No.-202**
CAA25(ND)/2020

**IN THE MATTER OF:**
Dibakar Clothing Limited And Kalita Apparels and marketing Limited ....APPLICANT

**SECTION**
U/s 230-232

**Order delivered on 20.07.2020**

**CORAM:**
**CH. MOHD. SHARIEF TARIQ**
**MEMBER (JUDICIAL)**
**SHRI NARENDER KUMAR BHOLA**
**MEMBER (TECHNICAL)**

**PRESENT:**
For the Applicant : Mr. Vijay Kumar Gupta, CA
For the OL/RD : Ms. Tania Sharma, Co. Prosecutor
For the Intervener : Mr. Nupur Sharma, St. Counsel

**ORDER**

Chartered Accountant representing the Petitioner Company is present. Counsel for the RD/OL is present. Counsel for Income Tax Department is present. The RD/OL has already filed its report and there are not significant observations. The Income Tax Department has raised the objections to the Scheme under consideration based on some investigation and stated that interest of the Income Tax Department may be taken care of.

The C.A. representing the petitioner company is directed to file an undertaking on behalf of the Transferee Company that it shall pay all dues of Income Tax of Transferor Companies, as and when determined/demanded by the Income Tax Department.

Heard. **Order Reserved.**

**(NARENDER KUMAR BHOLA)**
**MEMBER (TECHNICAL)**

**(CH. MOHD. SHARIEF TARIQ)**
**MEMBER (JUDICIAL)**

Jyoti